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Case Name: BETTS REVOCABLE TRUST, dated November 6, 1984

Case No.: 24PR197289

INTRODUCTION

Married couple Roy William Betts (“Roy”) and Ikeda Yamada Betts (“Ikeda”)¹ executed the Betts Revocable Trust in 1984. After Roy’s death, Ikeda amended the trust to make her caregiver, Roberto Aguilar (“Respondent”) a beneficiary. This case arises from a petition filed by Roy’s son and Ikeda’s stepson, Russell John Betts (“Petitioner”) to invalidate Ikeda’s amendment based on incapacity and undue influence and to remove Respondent as trustee. Respondent filed an opposition to the petition. Respondent passed away intestate on October 30, 2025. Currently before the court is a motion by Angel Castro (“Castro”), personal representative for Respondent’s estate, to substitute into the action in place of Respondent. The motion is unopposed.

DISCUSSION**I. Legal Background**

“On motion, the court shall allow a pending action or proceeding against the decedent that does not abate to be continued against the decedent’s personal representative or, to the extent provided by statute, against the decedent’s successor in interest, except that the court may not permit an action or proceeding to be continued against the personal representative unless proof of compliance with Part 4 (commencing with Section 9000) of Division 7 of the Probate Code governing creditor claims is first made.” (Code Civ. Proc., § 377.41.)

II. Merits of the Motion

Castro, Respondent’s nephew, sought and received appointment as personal representative for Respondent’s estate in docket 26PR201983. (See Declaration of Angel Castro in Support of Motion, ¶¶ 4-5.) Castro seeks to substitute in as respondent in this action. In support of his motion, he has provided Decedent’s death certificate and a copy of the letters of administration showing his appointment as personal representative. (See *id.*, Exs. A&B.)

Here, although Castro does not address this point, Petitioner’s petition does not seek a money judgment against Respondent; it seeks invalidation of the trust amendment executed by Ikeda and removal of Respondent as trustee. Accordingly, compliance with the creditor claims requirement is inapplicable. Additionally, the court finds that the claim for invalidation of the amendment does not abate with the death of the respondent, another point Castro does not address. (See Code Civ. Proc., § 377.20 [“Except as otherwise provided by statute, a cause of action for or against a person is not lost by reason of the person’s death, but survives subject to the applicable limitations period.”].) Because at least one claim in this action survives Respondent’s death and Castro, as the personal representative is the person with authority to substitute in for Respondent, the motion is GRANTED.

CONCLUSION

The motion is GRANTED.

¹ Some of the individuals share the same last name, the court uses first names. No disrespect is intended.